LAF YOMI

Bekhorot 46 · November 03, 2026

ON TODAY'S DAF

Bekhorot 46 closes perek מומין אלו with the neder sugya — a neder made על דעת רבים, whether it can be annulled, and the davar mitzvah exception — then opens the new perek on the human bechor: bechor l'nachalah versus bechor l'kohen, which birth counts, and Resh Lakish's forehead rule.

נדר על דעת רבים · YOSEF'S IMPOSSIBLE HATARAH



1. The Rashba: to annul a neder you must tell the rav the whole background — not just the neder, but why you made it. Yosef swore to bury his father in Eretz Yisrael; Pharaoh refused — 'go have your neder annulled.'

“Yosef's reply: gladly — but he had also sworn to Pharaoh never to reveal that Pharaoh didn't know Hebrew, the one language Yosef knew and the king didn't. Telling the rav the background would itself break the neder.”

— Rabbi Elefant

In the daf: Bekhorot 46a · נדר על דעת רבים — Yosef's impossible hatarah · Hear it in the shiur: Rabbi Moshe Elefant · 13:14

נדר על דעת רבים · THE TOCH KEDEI DIBBUR LOOPHOLE



2. The Gemara's answer: a neder made על דעת רבים — with the public's consent — which no rav can annul. But why not retract it תוך כדי דיבור, in the very moment you say it?

“The Chazon Ish: the rav should hear him make the neder and keep him talking past that window, so he never gets the chance to take it back. Stall the kohen until the neder sticks.”

— Rabbi Elefant

In the daf: Bekhorot 46a · נדר על דעת רבים אין לו הפרה — the Chazon Ish's stall tactic · Hear it in the shiur: Rabbi Moshe Elefant · 18:56

לדבר מצוה יש לו הפרה · THE TEACHER THEY COULDN'T REPLACE



3. A neder על דעת רבים can be annulled for a דבר מצוה — as with the מקרי דרדקי, the cheder teacher Rav Acha banned by neder from teaching because he hit the children. Rashi: he hit them, and they would die.

“Then Ravina took him back — there was nobody better than him. The best rebbe in town was the one they had to ban, and the only reason to un-ban him was that nobody else could teach like he could.”

— Rabbi Elefant

In the daf: Bekhorot 46a · לדבר מצוה יש לו הפרה — the teacher they couldn't replace · Hear it in the shiur: Rabbi Moshe Elefant · 20:57

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לדבר מצוה יש לו הפרה · MOSHE, THE GREATEST REBBE



4. The Kehalat Yitzchak: when Moshe died, the wellsprings of wisdom were taken from him — why? Hashem had sworn Moshe would not enter Eretz Yisrael, yet a neder blocking the greatest rebbe should be annullable.

“So Hashem solved it the other way: He took away Moshe's wisdom, so he was no longer the great rebbe — and with no great rebbe to restore, no reason to annul the neder. The loophole closed by demotion.”

— Rabbi Elefant

In the daf: Bekhorot 46a · לדבר מצוה יש לו הפרה — Moshe, the greatest rebbe · Hear it in the shiur: Rabbi Moshe Elefant · 22:08

גר שנתגייר בקטן שנולד דמי · RIVKA'S BROTHER ISN'T A BROTHER



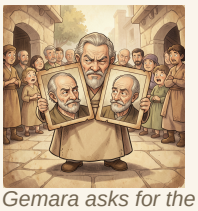
5. The Chatam Sofer, quoting the Shelah: when Eliezer came about Rivka, Lavan spoke before his father Betuel. Lavan knew most children take after the mother's brother — so he spoke first, hoping his rudeness would put Eliezer off.

“Why didn't it work? Rivka was a giyoret — a convert is like a newborn child, so her brother is not a brother anymore. Lavan's scheme collapsed on a technicality of conversion.”

— Rabbi Elefant

In the daf: Bekhorot 46a · עובדת כוכבים ונתגיירה — Rivka's brother isn't a brother · Hear it in the shiur: Rabbi Moshe Elefant · 38:05

הכרת פנים · THE FACE GIVES IT AWAY



6. To prove testimony needs the whole face, the Gemara asks for the verse — הכרת פניהם ענתה בם. What does a face have to do with it? It's the verse about a mamzer.

“Hashem makes the mamzer look like his father, so everybody should know. The Maharsha adds: that is not enough to actually declare someone a mamzer — a likeness is evidence, not a verdict.”

— Rabbi Elefant

In the daf: Bekhorot 46b · הכרת פניהם ענתה בם — the mamzer looks like his father · Hear it in the shiur: Rabbi Moshe Elefant · 47:35